

HOUSE No. 482

The Commonwealth of Massachusetts

PRESENTED BY:

Ann-Margaret Ferrante

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to designated port areas.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Ann-Margaret Ferrante</i>	<i>5th Essex</i>	<i>1/17/2025</i>

HOUSE No. 482

By Representative Ferrante of Gloucester, a petition (accompanied by bill, House, No. 482) of Ann-Margaret Ferrante for legislation to establish a designated port area community fund. Economic Development and Emerging Technologies.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 408 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to designated port areas.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3A of chapter 23A of the General Laws is hereby amended by
2 striking out the definition of “Gateway municipality”, as appearing in the 2012 Official Edition,
3 and inserting in place thereof the following definition:-

4 “Gateway municipality”, a municipality with a population greater than 35,000 and less
5 than 250,000, a median household income below the commonwealth's average and a rate of
6 educational attainment of a bachelor's degree or above that is below the commonwealth's
7 average; or a municipality that contains or includes a designated port area, as defined in section 2
8 of chapter 21F.

SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting after section 2QQQQ, inserted by section 14 of chapter 359 of the acts of 2014, the following section:-

Section 2RRRR. There shall be established and set up on the books of the commonwealth a Designated Port Area Community Fund which shall be administered by the Massachusetts Development Finance Agency. Notwithstanding any general or special law to the contrary, the following monies shall be credited to the fund: (i) any appropriations, grants, gifts or other monies authorized by the general court or other parties and specifically designated to be credited to the fund; and (ii) any income derived from the investment of amounts credited to the fund. All amounts credited to the fund shall be used without further appropriation for the purpose of developing and providing economic assistance to properties located within a designated port area. No expenditure from the fund shall cause the fund to be in deficiency at the close of a fiscal year. Monies deposited in the fund that are unexpended at the end of the fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent year. The fund shall be exempt from the indirect and fringe benefits that would otherwise be assessed pursuant to this chapter.